# MEETING OF THE BOARD OF ADJUSTMENT
# BOULDER COUNTY, COLORADO
# AGENDA

**Wednesday, October 5, 2022, 4:00 p.m.**

**Virtual BOA Meeting**

Due to COVID-19, Board of Adjustment hearings are currently being held virtually. Information regarding how to participate will be available on the Board of Adjustment webpage approximately one week prior to the hearing at https://boco.org/BOA. To join the meeting by phone, dial 1-833-568-8864 (toll free) and enter the Webinar ID: 161 976 9885

This agenda is subject to change. Please call ahead (303-441-3930) or check the Board of Adjustment webpage to confirm an item of interest. For special assistance, contact our ADA Coordinator (303-441-3525) at least 72 hours in advance.

There will be opportunity to provide public comment remotely on the subject items during the respective virtual Public Hearing portion for each item. If you have comments regarding any of these items, you may mail comments to the Community Planning & Permitting Department (PO Box 471, Boulder, CO 80306) or email to planner@bouldercounty.org. Please reference the docket number of the subject item in your communication.

---

1. **CALL TO ORDER**
2. **ROLL CALL**
3. **NOMINATION OF OFFICERS**
4. **ITEMS**

**4.1. Docket AP-22-0002: Billingsley BLD Appeal**

*Public testimony will be taken*

Request: Appeal of BLD-22-0028, BLD-22-0029, BLD-22-0030, and BLD-22-0031 which determined PINs 158320011001, 158320010004, 158320016001, and 158320017002 are, together, one 4.8 ac building lot. This appeal has been submitted by Billingsley Living Trust and FJGG, P.C., c/o Harmon Zuckerman, Esq., in accordance with the Boulder County Land Use Code.

Appellant: Billingsley Living Trust

Agent: FJGG, P.C., c/o Harmon Zuckerman, Esq.

Website: https://boco.org/AP-22-0002

Staff Planner: Dale Case

**4.2. Docket AP-22-0003: Martin Marietta Appeal SU-96-18 has lapsed**

*Public testimony will be taken*

Request: Appeal of the Community Planning & Permitting Director's determination that the Special Use approved in Docket SU-96-18 has lapsed under Section 4-604 (C) of the Boulder County Land Use Code. This appeal has been submitted by Martin Marietta, in accordance with the Boulder County Land Use Code. For more information related to Docket SU-96-18, please visit https://arcg.is/045Pyr .

Appellant: Martin Marietta Materials Inc. c/o Martin Stratte.

Agent: Brian J. Connolly, Otten Johnson Robinson Neff + Ragonetti PC

Website: https://boco.org/AP-22-0003

Staff Planner: Dale Case

**5. ADJOURNMENT**

# MEETING OF THE BOARD OF ADJUSTMENT
# BOULDER COUNTY, COLORADO
# REVISED AGENDA

**Wednesday, October 5, 2022, 4:00 p.m.**

**Virtual BOA Meeting**

Due to COVID-19, Board of Adjustment hearings are currently being held virtually. Information regarding how to participate will be available on the Board of Adjustment webpage approximately one week prior to the hearing at https://boco.org/BOA. To join the meeting by phone, dial 1-833-568-8864 (toll free) and enter the Webinar ID: 161 976 9885

This agenda is subject to change. Please call ahead (303-441-3930) or check the Board of Adjustment webpage to confirm an item of interest. For special assistance, contact our ADA Coordinator (303-441-3525) at least 72 hours in advance.

There will be opportunity to provide public comment remotely on the subject items during the respective virtual Public Hearing portion for each item. If you have comments regarding any of these items, you may mail comments to the Community Planning & Permitting Department (PO Box 471, Boulder, CO 80306) or email to planner@bouldercounty.org. Please reference the docket number of the subject item in your communication.

---

1. **CALL TO ORDER**
2. **ROLL CALL**
3. **NOMINATION OF OFFICERS**
4. **ITEMS**

**4.1. Docket AP-22-0002: Billingsley BLD Appeal (Item To Be Tabled to November 2, 2022 BOA Meeting)**

~~*Public testimony will be taken*~~

~~Request: Appeal of BLD-22-0028, BLD-22-0029, BLD-22-0030, and BLD-22-0031 which determined PINs 158320011001, 158320010004, 158320016001, and 158320017002 are, together, one 4.8 ac building lot. This appeal has been submitted by Billingsley Living Trust and FJGG, P.C., c/o Harmon Zuckerman, Esq., in accordance with the Boulder County Land Use Code.~~

~~Appellant: Billingsley Living Trust~~

~~Agent: FJGG, P.C., c/o Harmon Zuckerman, Esq.~~

~~Website: https://boco.org/AP-22-0002~~

~~Staff Planner: Dale Case~~

**4.2. Docket AP-22-0003: Martin Marietta Appeal SU-96-18 has lapsed**

*Public testimony will be taken*

Request: Appeal of the Community Planning & Permitting Director's determination that the Special Use approved in Docket SU-96-18 has lapsed under Section 4-604 (C) of the Boulder County Land Use Code. This appeal has been submitted by Martin Marietta, in accordance with the Boulder County Land Use Code. For more information related to Docket SU-96-18, please visit https://arcg.is/045Pyr .

Appellant: Martin Marietta Materials Inc. c/o Martin Stratte.

Agent: Brian J. Connolly, Otten Johnson Robinson Neff + Ragonetti PC

Website: https://boco.org/AP-22-0003

Staff Planner: Dale Case

**5. ADJOURNMENT**

Boulder County

# Community Planning & Permitting

Courthouse Annex • 2045 13th Street • Boulder, Colorado 80302 • Tel: 303.441.3930
**Mailing Address:** P.O. Box 471 • Boulder, Colorado 80306 • **www.bouldercounty.org**

**PUBLIC HEARING**
**BOULDER COUNTY, COLORADO**
**BOARD OF ADJUSTMENT**

DATE: October 5, 2022
TIME: 4:00 p.m.

**PLEASE NOTE: This hearing will be held virtually. Information regarding how to participate will be available on the Board of Adjustment webpage in advance of the hearing (approximately September 28, 2022) at https://boco.org/BOA. To join the meeting by phone, dial 1-833-568-8864 (toll free) and enter the Webinar ID: 161 976 9885.**

Notice is hereby given that a public hearing will be held by the Boulder County Board of Adjustment at the date and time specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Board members in their consideration.

**There will be opportunity to remotely provide public comment on the subject dockets during the virtual Public Hearing portion for each item. If you have comments regarding any of these items, you may mail comments to the Community Planning & Permitting Department (PO Box 471, Boulder, CO 80306) or email to planner@bouldercounty.org. Please reference the docket number of the subject item in your communication. Call 303-441-3930 or email planner@bouldercounty.org for more information.**

**Docket AP-22-0002: Billingsley BLD Appeal**
Appeal of BLD-22-0028, BLD-22-0029, BLD-22-0030, and BLD-22-0031 which determined PINs 158320011001, 158320010004, 158320016001, and 158320017002 are, together, one 4.8 ac building lot. This appeal has been submitted by Billingsley Living Trust and FJGG, P.C., c/o Harmon Zuckerman, Esq., in accordance with the Boulder County Land Use Code.
Website: **https://boco.org/AP-22-0002**

**Docket AP-22-0003: Martin Marietta Appeal SU-96-18 has lapsed**
Appeal of the Community Planning & Permitting Director's determination that the Special Use approved in Docket SU-96-18 has lapsed under Section 4-604 (C) of the Boulder County Land Use Code. This appeal has been submitted by Martin Marietta, in accordance with the Boulder County Land Use Code. For more information related to Docket SU-96-18, please visit https://arcg.is/045Pyr. The application is submitted by Martin Marietta Materials Inc. c/o Martin Stratte.
Website: **https://boco.org/AP-22-0003**

It is Boulder County policy to make county programs, meetings, activities, and services accessible to individuals with disabilities, according to the Americans with Disabilities Act. If you need special assistance, contact the ADA Coordinator at 303-441-3525 at least 72 hours before the scheduled event.

**Detailed information regarding these items is available online at https://boco.org/cpp.**

Published: September 21, 2022 – Daily Times-Call



**Matt Jones** *County Commissioner* **Claire Levy** *County Commissioner* **Marta Loachamin** *County Commissioner*

**PUBLIC HEARING**
**BOULDER COUNTY, COLORADO**
**BOARD OF ADJUSTMENT**

DATE: October 5, 2022
TIME: 4:00 p.m.

**PLEASE NOTE: This hearing will be held virtually. Information regarding how to participate will be available on the Board of Adjustment webpage in advance of the hearing (approximately September 28, 2022) at https://boco.org/BOA. To join the meeting by phone, dial 1-833-568-8864 (toll free) and enter the Webinar ID: 161 976 9885.**

Notice is hereby given that a public hearing will be held by the Boulder County Board of Adjustment at the date and time specified above. All persons interested in the following item(s) are requested to attend such hearing and aid the Board members in their consideration.

**There will be opportunity to remotely provide public comment on the subject dockets during the virtual Public Hearing portion for each item. If you have comments regarding any of these items, you may mail comments to the Community Planning & Permitting Department (PO Box 471, Boulder, CO 80306) or email to planner@bouldercounty.org. Please reference the docket number of the subject item in your communication. Call 303-441-3930 or email planner @bouldercounty.org for more information.**

**Docket AP-22-0002: Billingsley BLD Appeal**
Appeal of BLD-22-0028, BLD-22-0029, BLD-22-0030, and BLD-22-0031 which determined PINs 158320011001, 158320010004, 158320016001, and 158320017002 are, together, one 4.8 ac building lot. This appeal has been submitted by Billingsley Living Trust and FJGG, P.C., c/o Harmon Zuckerman, Esq., in accordance with the Boulder County Land Use Code.
Website: https://boco.org/AP-22-0002

**Docket AP-22-0003: Martin Marietta Appeal SU-96-18 has lapsed**
Appeal of the Community Planning & Permitting Director's determination that the Special Use approved in Docket SU-96-18 has lapsed under Section 4-604 (C) of the Boulder County Land Use Code. This appeal has been submitted by Martin Marietta, in accordance with the Boulder County Land Use Code. For more information related to Docket SU-96-18, please visit https://arcg.is/045Pyr. The application is submitted by Martin Marietta Materials Inc. c/o Martin Stratte.
Website: https://boco.org/AP-22-0003

It is Boulder County policy to make county programs, meetings, activities, and services accessible to individuals with disabilities, according to the Americans with Disabilities Act. If you need special assistance, contact the ADA Coordinator at 303-441-3525 at least 72 hours before the scheduled event.

**Detailed information regarding these items is available online at https://boco.org/cpp.**

Published: Longmont Times Call September 21, 2022-1921124

## Prairie Mountain Media, LLC

### PUBLISHER'S AFFIDAVIT

**County of Boulder**
**State of Colorado**

**The undersigned, Agent, being first duly sworn under oath, states and affirms as follows:**

1. **He/she is the legal Advertising Reviewer of Prairie Mountain Media LLC, publisher of the *Longmont Times Call*.**
2. **The *Longmont Times Call* is a newspaper of general circulation that has been published continuously and without interruption for at least fifty-two weeks in Boulder County and meets the legal requisites for a legal newspaper under Colo. Rev. Stat. 24-70-103.**
3. **The notice that is attached hereto is a true copy, published in the *Longmont Times Call* in Boulder County on the following date(s):**

**Sep 21, 2022**

Melissa Najera
**Signature**

**Subscribed and sworn to me before me this 21st day of September 2022.**

Shayla Najera
**Notary Public**

**(SEAL)**

SHAYLA NAJERA
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20174031965
MY COMMISSION EXPIRES July 31, 2025

| | |
|---|---|
| **Account:** | **1050753** |
| **Ad Number:** | **1921124** |
| **Fee:** | **$56.84** |